

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

LOGFRET, INC., *Complainant*

v.

KIRSHA, B.V., LEENDERT JOHANNES BERGWERFF A/K/A
HANS BERGWERFF, AND LINDA SIEVAL, *Respondents*.

DOCKET NO. 18-10

Served: November 19, 2019

BEFORE: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON COMPLAINANT'S MOTION TO STRIKE PETITION FOR ATTORNEY FEES

On October 23, 2019, Respondents filed a petition seeking attorney fees and a motion for confidential treatment ("Petition"). On October 28, 2019, an order was issued providing additional time for Respondents to supplement their petition and for Complainant to file a response. On November 7, 2019, Respondents filed their supplement to the petition for attorney fees ("Supplement to the Petition"). On November 14, 2019, Complainant filed a motion to strike Respondents' petition for attorney fees as premature ("Motion to Strike").

The initial decision granting motion to dismiss was issued on September 17, 2019. Neither party filed exceptions and the time within which the Commission could determine to review the initial decision expired. Accordingly, on October 21, 2019, a notice not to review was issued, stating that "the decision has become administratively final." Both the petition and the supplement to the petition were filed within thirty days of the notice not to review.

Complainant asserts that Respondents' petition for attorney fees is prematurely filed and must be stricken from the record, arguing that a party may, within sixty days after its entry, file a petition at the federal court of appeals to review a final order of the Federal Maritime Commission. Motion to Strike at 4-6. Complainant does not state whether or not it intends to file an appeal with the federal court of appeals. Complainant indicates that Respondents do not oppose the motion.

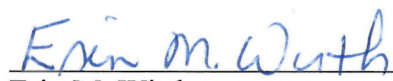
Commission Rule 254(c)(1) states that "[i]n order to recover attorney fees, the prevailing party must file a petition within 30 days after a decision becomes final. For purposes of this section, a decision is considered final when the time for seeking judicial review has expired or when a court appeal has terminated." 46 C.F.R. § 502.254(c)(1).

When the notice not to review stating that the decision had “become administratively final” was issued, the initial decision became final. Notice Not to Review at 1. Rule 254(c)(2) states that “[t]he prevailing party must file the petition with either: (i) The administrative law judge or small claims officer, if that official’s decision became administratively final under §502.227(a)(3), §502.227(c), §502.304(g), or §502.318(a).” 46 C.F.R. § 502.254(c)(2). In this case, the initial decision became administratively final under § 502.227(c) on October 21, 2019. According to Commission Rule 254(c)(1), “the prevailing party must file a petition within 30 days after a decision becomes final.” 46 C.F.R. § 502.254(c)(1). The petition and supplement were filed on October 23, 2019, and November 7, 2019, within thirty days of the initial decision becoming final, as required by Rule 254(c)(1).

Rule 254(c)(1) also says that “a decision is considered final when the time for seeking judicial review has expired or when a court appeal has terminated.” 46 C.F.R. § 502.254(c)(1). Any party desiring to appeal an administrative law judge’s grant of a motion for dismissal “must file such appeal no later than twenty-two (22) days after service of the ruling on the motion in question.” 46 C.F.R. § 502.227(b)(1); *see also* Initial decision at 1, n.1 (“An appeal by a party must be filed with the Commission’s Office of the Secretary within twenty-two days from the date of service of the decision.”). Generally, “[o]ne challenging an agency decision must exhaust all administrative remedies before seeking judicial review.” 33 Wright & Koch, Federal Practice & Procedure § 8398 (2006).

It does not appear that the timing of the petition for attorney fees is improper as it falls within thirty days of the notice not to review stating that the decision was administratively final. However, in an abundance of caution and to ensure that Complainant is not disadvantaged, Complainant will be provided additional time to respond to the petition and supplement to the petition. Complainant states that they have sixty days, until December 20, 2019, to determine whether to file a petition with the federal court of appeals. Under this timeline, the earliest Respondents could file their petition for attorney fees would be December 23, 2019. Complainant would then have twenty days, until January 13, 2020, to respond to the attorney fee petition.

For the reasons stated above, it is hereby **ORDERED** that Complainant’s motion to strike the petition for attorney fees be **DENIED**. Complainant should file its response to the petition and supplement to the petition by January 13, 2020. Respondents will not be required to expend additional resources to refile the petition and supplement to the petition.


Erin M. Wirth
Chief Administrative Law Judge